

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2375
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 9-462.13, Arizona Revised Statutes, is amended
3 to read:

4 9-462.13. Zoning; development; middle housing; applicability;
5 definitions

6 A. ~~On or before January 1, 2026,~~ A municipality with a population
7 of seventy-five thousand persons or more must authorize by ordinance and
8 incorporate into its development regulations, zoning regulations and other
9 official controls the development of duplexes, triplexes, fourplexes and
10 townhomes as a permitted use on both of the following:

11 1. All lots zoned for single-family residential use within one mile
12 of the municipality's central business district.

13 2. At least twenty percent of any new development of more than ten
14 contiguous acres.

15 B. The municipality may not do any of the following:

16 1. Discourage the development of middle housing through
17 requirements or actions that individually or cumulatively make
18 impracticable the permitting, siting, ~~or~~ or construction of middle housing.

19 2. Restrict middle housing types to less than two floors.

20 3. Restrict middle housing types to a floor area ratio of less than
21 fifty percent.

22 4. Set restrictions, permitting or review processes for middle
23 housing that are more restrictive than those for single-family dwellings
24 within the same zone.

25 5. Require owner occupancy of any structures on the lot.

26 6. Require any structures to comply with a commercial building code
27 or to contain a fire sprinkler.

28 7. Require more than one off-street parking space per unit.

29 C. This section does not prohibit the governing body of a
30 municipality from allowing either of the following:

31 1. Single-family dwellings in areas zoned for single-family
32 dwellings.

33 2. Additional types of middle housing not required under this
34 section.

35 D. This section does not apply to any of the following:

36 1. Areas that are not incorporated.

37 2. Areas that lack sufficient urban services.

38 3. Areas that are not served by water and sewer services.

39 4. Areas that are not zoned for residential use.

1 5. Areas that are not incorporated and are zoned under an interim
2 zoning designation that maintains the area's potential for planned urban
3 development.

4 6. Areas covered under title 48, chapter 6, article 4.

5 7. Any land within the territory in the vicinity of a public
6 airport as defined in section 28-8486 or to the extent this section would
7 interfere with the public airport's ability to comply with the laws,
8 regulations and requirements of the United States related to applying for,
9 receiving or spending federal monies.

10 8. Any land within the territory in the vicinity of a military
11 airport as defined in section 28-8461.

12 E. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY ALLOW MIDDLE
13 HOUSING TO BE DEVELOPED IN AN AREA DESIGNATED AS A LOCAL HISTORIC
14 PRESERVATION DISTRICT OR IN A HISTORIC OVERLAY ZONE THAT HAS BEEN ADOPTED
15 BY THE MUNICIPALITY IF THE MIDDLE HOUSING COMPLIES WITH HISTORIC
16 PRESERVATION OR DESIGN STANDARDS THAT HAVE BEEN ADOPTED BY THE
17 MUNICIPALITY.

18 F. FOR MIDDLE HOUSING THAT IS DEVELOPED PURSUANT TO SUBSECTION E OF
19 THIS SECTION, A MUNICIPALITY MAY:

20 1. ADOPT ORDINANCES THAT PROTECT CONTRIBUTING HISTORIC STRUCTURES
21 FROM DEMOLITION BY NEGLECT.

22 2. ADOPT OBJECTIVE CRITERIA THAT PROHIBIT DEMOLISHING A
23 CONTRIBUTING HISTORIC STRUCTURE, EXCEPT WHERE STRUCTURAL INSTABILITY,
24 PUBLIC SAFETY HAZARDS OR OTHER CONDITIONS AS DEFINED BY MUNICIPAL
25 ORDINANCE EXIST AND ARE CERTIFIED BY A LICENSED ENGINEER OR BUILDING CODE
26 OFFICIAL.

27 3. ADOPT STANDARDS TO REGULATE THE FORM AND DESIGN ELEMENTS FOR
28 MIDDLE HOUSING.

29 4. ESTABLISH OBJECTIVE DEMOLITION DELAY OR DOCUMENTATION
30 REQUIREMENTS FOR CONTRIBUTING HISTORIC STRUCTURES.

31 5. REQUIRE ADMINISTRATIVE SITE PLAN REVIEW FOR COMPLIANCE WITH THE
32 HISTORIC PRESERVATION OR DESIGN STANDARDS THAT HAVE BEEN ADOPTED BY THE
33 MUNICIPALITY.

34 G. FOR MIDDLE HOUSING THAT IS DEVELOPED PURSUANT TO SUBSECTION E OF
35 THIS SECTION, A MUNICIPALITY MAY NOT DO ANY OF THE FOLLOWING:

36 1. REDUCE THE ALLOWABLE RESIDENTIAL DENSITY.

37 2. ELIMINATE ANY TYPE OF HOUSING THAT IS ALLOWED PURSUANT TO THIS
38 SECTION.

39 3. MAKE DEVELOPMENT IMPRACTICAL WITHIN AN APPLICABLE ZONING
40 DISTRICT.

41 4. REQUIRE A PUBLIC HEARING, VARIANCE, CONDITIONAL USE PERMIT,
42 SPECIAL PERMIT OR OTHER DISCRETIONARY APPROVAL PROCESS.

43 H. NOTWITHSTANDING ANY OTHER LAW, MIDDLE HOUSING MAY NOT BE
44 DEVELOPED ON A SITE WHERE A STRUCTURE THAT IS LISTED ON OR IS ELIGIBLE FOR
45 DESIGNATION ON THE NATIONAL REGISTER OF HISTORIC PLACES WAS DEMOLISHED
46 WITHOUT THE REQUIRED MUNICIPAL DEMOLITION PROCESS AND REQUIRED PUBLIC
47 NOTICE. PUBLIC INPUT THAT IS CONDUCTED SOLELY FOR THE PURPOSE OF
48 DEVELOPING MIDDLE HOUSING ON A SITE PURSUANT TO THIS SUBSECTION MAY NOT BE
49 USED TO AUTHORIZE THE MIDDLE HOUSING DEVELOPMENT.

1 ~~I.~~ I. If a municipality does not adopt the regulations required by
2 this section on or before January 1, 2026, middle housing shall be allowed
3 on all lots in the municipality zoned for single-family residential use
4 without any limitations.

5 ~~J.~~ J. This section does not change or otherwise impair the terms
6 of any development agreement that exists on September 14, 2024.

7 ~~K.~~ K. Notwithstanding subsection A of this section, a utility
8 provider impacted by a development being developed pursuant to this
9 section shall have the opportunity to review and approve the site plan for
10 the development.

11 ~~L.~~ L. For the ~~purpose~~ PURPOSES of this section:

12 1. "Building code":
13 (a) Means a construction code adopted by a municipality.
14 (b) Includes a model building code, commercial code, plumbing and
15 mechanical code, electric code, energy conservation code, fire code,
16 property maintenance code, neighborhood preservation code, antiblight code
17 or other similar code.

18 2. "Central business district" means an area or series of areas
19 designated by a municipality that are primarily nonindustrial and that
20 attract community activity, including the entire geographic area that the
21 municipality has officially designated as its downtown or equivalent on
22 September 14, 2024.

23 3. "Duplex" means two dwelling units on the same parcel or lot in
24 attached, detached or semidetached arrangements that are designed for
25 residential occupancy by not more than two households living independently
26 from each other.

27 4. "Floor area ratio" means the ratio of allowed square footage in
28 a middle housing project to the square footage of the parcel on which it
29 is built.

30 5. "Fourplex" means four dwelling units on the same parcel or lot
31 in attached, detached or semidetached arrangements that are designed for
32 residential occupancy by not more than four households living
33 independently from each other.

34 6. "Household" means either:
35 (a) A single person living or residing in a dwelling or place of
36 residence.
37 (b) Two or more persons living together or residing in the same
38 dwelling or place of residence.

39 7. "Middle housing":
40 (a) Means buildings that are compatible in scale, form and
41 character with single-family houses and that contain two or more attached,
42 detached, stacked or clustered homes.
43 (b) Includes duplexes, triplexes, fourplexes and townhouses.

44 8. "Permitted use" means the ability for a development to be
45 approved without requiring a public hearing, variance, conditional use
46 permit, special permit or special exception, other than a discretionary
47 zoning action to ~~determination~~ DETERMINE that a site plan conforms with
48 applicable zoning regulations.

1 9. "Townhouses" means dwelling units that are constructed in a row
2 of two or more attached units in which each dwelling unit shares at least
3 one common wall with an adjacent unit and that are accessed by separate
4 outdoor entrances.

5 10. "Triplex" means three dwelling units on the same parcel or lot
6 in attached, detached or semidetached arrangements that are designed for
7 residential occupancy by not more than three households living
8 independently from each other.

9 Sec. 2. Legislative intent

10 The legislature intends:

11 1. To preserve historic resources and neighborhood character within
12 locally designated historic preservation districts.

13 2. Maintain opportunities for compatible, neighborhood-scale
14 housing options in areas with existing infrastructure and access to
15 employment and services."

16 Amend title to conform

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